



Risk Placement Services, Inc.

Knowledge. Relationships.
Trust. Confidence.

Risk Placement Services, Inc. - Buffalo
400 Essay Rd
Suite 100
Buffalo, NY 14221

RPS Contact:
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Underwriting Manager
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Fax:
Email: Andy_Coric@rpsins.com

October 23, 2024

RPS Submission #: 6989924A

Proposal of Insurance - Renewal

APPLICANT:

Copperfield Enterprises PC
PO Box 606
Goshen, NY 10924

RENEWAL OF:

SP 2553389F

COVERAGE:

Errors & Omissions - Accountants

SUBMITTED TO:

Rob Bowen
Patriotic Insurance Group Brokerage, Inc.
PO Box 329
Inlet, NY 13360
(845) 610-5700
rob@patrioticinsurancegroup.com

RETAIL PRODUCER COMMISSION: 10%

You do not have authority to bind this coverage. You can easily order coverage by completing the fields below and either faxing or emailing this page to the number or address listed at top

REQUESTED EFFECTIVE DATE: _____

PREMIUM FINANCE COMPANY: _____

PERSON REQUESTING BINDER: _____

DATE REQUESTED: _____

TRIA REJECTED _____ **TRIA ACCEPTED** _____

I have included the following necessary documentation:

Completed signed application	Completed signed TRIA	Loss Runs	Other Bind documents
_____	_____	_____	_____ _____

1. Quote Review - The coverages described in this quote may not conform to the terms you requested. You are responsible for outlining and explaining to your client the coverages offered, including other options, whether available through RPS or not. The coverage terms attached are not fully described, and no assumption should be made as to the adequacy of coverages offered, as compared to the exposures of your client.
2. Actual coverage forms are available on request.
3. You are not an agent of the insurer, and as such, cannot bind coverage nor make any commitments on behalf of the insurer, nor of us. This policy cannot be assigned to another without the written consent of the Insurer of the Agent.



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Inlet, NY 13360
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PROPOSAL OF INSURANCE - Renewal

Proposal Information

Insured Name: Copperfield Enterprises PC
Policy Period: 12/23/2024 to 12/23/2025
Insurance Carrier: Mount Vernon Fire Insurance Company NAIC #: 26522
Admitted / Non-Admitted: Admitted
A. M. Best Rating: A++ XIV

Retroactive Date (if Claims Made coverage):

Physical Location

168 Main Street,
Goshen, NY 10924

Limits of Insurance

Coverage: Professional Liability

\$1,000,000 Each Claim
\$1,000,000 Annual Aggregate

Deductible

\$1,000 Each Claim

Rating Information

Premium Summary

Premium \$6,859.00

Coverage

Professional Liability

Premium

\$6,859.00

Commission%

10.00

MEP % -If varies
from policy MEP

Minimum Earned Premium:

TRIA Status: NOT APPLICABLE

TRIA Premium: (optional)

(All applicable taxes and fees are Fully Earned at binding unless otherwise specified.)

Fees:

Tax State (or home state): NY

SURPLUS LINES TAXES:

TAXES WITHOUT TRIA

TAXES WITH TRIA

TOTAL CHARGES W/O \$6,859.00
TRIA

TOTAL CHARGES \$6,859.00
WITH TRIA

Coverage Notes

This quote is valid for 30 days or until the proposed inception, whichever is later.

After binding, flat cancellation is not permitted. Minimum earned premium provision applies.

Forms / Endorsements

Terms & Conditions

IN ORDER TO BIND COVERAGE, please provide the following additional information. Please note, coverage and premium terms are subject to change or withdrawal pending review and underwriting approval of this additional information:

Binder Issuance is Subject To:

Patriotic Insurance Group

Enclosed you will find **an admitted** renewal Specified Professions Professional Liability quote for Copperfield Enterprises PC
The Expiring policy number is SP 2553389F and the expiration date is 12/23/2024.

- Section I-** Details the premiums, taxes and fees associated with this account. In addition, it provides the Underwriting Notes and covers any of the additional underwriting information that might be needed prior to binding or within 21 days of the inception date.
- Section II-** Lists the required coverage forms, notices, endorsements and exclusions.
- Section III-** Provides the Direct Bill Payment Description.

In addition we have included some materials that will assist in the evaluation of this offer of coverage.

- Endorsement PL 1 PFAS SP NY EXCLUSION - PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS) for your review.
- Endorsement SP NY M New York State Amendatory Endorsement for your review.
- A Point of Sale piece that provides some claims scenarios this account may encounter and a coverage checklist that can be compared to the quotation of another carrier.

The carrier will send the insured an invoice based on the terms reflected in this quote.
Payment is due to the carrier by the expiration date in order to renew coverage.

Payment options available to you are:

1. Send the invoice remittance slip with payment to the lockbox address on their invoice
2. Pay online at www.usli.com/ezpay.
3. Pay by phone (automated system available 24/7) at 866-632-2003

The policyholder can register their policy at www.usli.com/ezpay. By registering their policy, the insured will have access to additional information as well as the option to set-up recurring payments. Recurring payments are a great way to minimize the possibility of the insureds policy being cancelled or not renewed because payment was not received.

Please advise your agent as soon as possible if changes are needed or optional coverages are desired.

We invite you to contact us to discuss the benefits of any coverages, the costs associated or simply to provide feedback! We welcome the opportunity to talk with you about this quote.

Thank you for the opportunity to renew this coverage with you!

Sincerely,
Andy Coric
RPS BUFFALO
(716) 332-9444

SPECIFIED PROFESSIONS
SP024S3073

Quote is valid until 12/23/2024

Re: **Copperfield Enterprises PC**
Renewal of: SP 2553389F - Expiration Date: 12/23/2024

To: Patriotic Insurance Group

Attn:
Commission: 10 %

From: Andy Coric
andy_coric@rpsins.com / (716) 332-9444

****DIRECT BILL RENEWAL****

The policyholder will be invoiced 45 days prior to expiration.

This renewal will be invoiced with 4 installments. A \$5.00 installment fee will apply to each installment after the first.

This quote is for informational purposes only - do not bill or collect payment.

Please advise as soon as possible if changes are needed or optional coverages are desired.

I. PREMIUM AND UNDERWRITING NOTES/REQUIREMENTS

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY POLICY INFORMATION

Carrier:	Mount Vernon Fire Insurance Company
Status:	Admitted
A.M. Best Rating:	A++ (Superior) - XII

Professional Liability Premium

LIMIT OPTIONS	PREMIUM
☐ \$1,000,000/\$1,000,000	\$6,859

ADDITIONAL QUOTE INFORMATION

Retroactive date: 12/23/2015

Deductible: \$1,000 Each Claim

Errors and Omissions Coverage is provided on a Claims Made basis.

Classification: Solely in the Performance of Professional Services as a(n) Tax Preparer - Business and Personal Tax Preparations, Compilation, Review, Consulting and/or Forecasting but no non-public Audit Services for others for a fee.

FREE AND DISCOUNTED BUSINESS SERVICES AVAILABLE TO USLI INSURED - VISIT BIZRESOURCECENTER.COM FOR DETAILS

This account is subject to the following - Sections A, B and C:

Please contact us with any questions regarding the terminology used or the coverages provided.

Read the quote carefully, it may not match the coverages requested

Please note that we will not be able to bind coverage until we satisfy all Prior to Binding requirements.

A. Prior To Bind Requirements:

- No Prior to Bind Requirements

B. Items Required Within 21 days of the inception of coverage:

- No Items Required Within 21 Days

C. Underwriting Notes:

- No Underwriting Notes

II. DIRECT BILL QUOTE INFORMATION

Additional Quote Information

-If a notice of claim is received by the Insured or United States Liability Insurance Group between the date of this quote letter and the expiration date of the policy, United States Liability Insurance Group retains the right to require a complete renewal submission and re-underwrite the terms and conditions.

III. REQUIRED FORMS & ENDORSEMENTS

Errors and Omissions Endorsements

Jacket NY MTV	(12/19) Policy Jacket - Mount Vernon	SP 213	(07/09) Computer Consultants Endorsement
*PL 1 PFAS SP NY	(03/24) EXCLUSION - PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS)	SP 267	(05/15) Payroll Processing Exclusion
PROF-001	(06/01) Absolute Pollution Exclusion - Professional	SP 268	(07/09) Named Insured Endorsement
SP	(07/09) Specified Professions Professional Liability Coverage Form	SP 270	(07/09) Amendment Of Professional Services Endorsement
SP 210	(07/09) Retroactive Date Endorsement	SP 283 NY	(03/22) Pro Security Plus Endorsement
SP 211	(07/09) Professional Services Exclusion Endorsement	*SP NY M	(07/14) New York State Amendatory Endorsement

For your convenience we have marked the endorsements that have changed for this coming term. Those marked with 1 asterisk (*) are new forms not previously included on this account.

IV. DIRECT BILL PAYMENT PLAN DESCRIPTIONS

One Year Payment Plan Descriptions:

FOUR PAYMENTS - 40% of the premium is invoiced with the first installment and due by the inception date; three equal installments of 20% are invoiced at 120 days, 180 days and 240 days after inception.

An installment fee as noted on page 1 of this quote applies to each installment after the first.

Please contact us with any questions regarding the terminology used or the coverages provided.

Read the quote carefully, it may not match the coverages requested

This endorsement changes insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

EXCLUSION – PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS)

This insurance does not apply to:

Perfluoroalkyl And Polyfluoroalkyl Substances

The **Company** shall not be liable to make payment for, as defined by the policy above; **Loss** or **Claim Expenses** in connection with any **Claim** made against the **Insured** arising out of, directly or indirectly resulting from, in consequence of, in whole or in part, or in any way involving any actual or alleged;

- a. threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any **perfluoroalkyl or polyfluoroalkyl substances**; and
- b. abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, **perfluoroalkyl or polyfluoroalkyl substances**, by any **Insured** or by any other person or entity.

Perfluoroalkyl or polyfluoroalkyl substances means any:

1. Chemical or substance that contains one or more alkyl carbons on which hydrogen atoms have been partially or completely replaced by fluorine atoms, including but not limited to:
 - a. Polymer, oligomer, monomer or nonpolymer chemicals and their homologues, isomers, telomers, salts, derivatives, precursor chemicals, degradation products or by-products;
 - b. Perfluoroalkyl acids (PFAA), such as perfluorooctanoic acid (PFOA) and its salts, or perfluorooctane sulfonic acid (PFOS) and its salts;
 - c. Perfluoropolyethers (PFPE);
 - d. Fluorotelomer-based substances; or
 - e. Side-chain fluorinated polymers
2. Good or product, including containers, materials, parts or equipment furnished in connection with such goods or products, that consists of or contains any chemical or substance described in Paragraph 1.

All other terms and conditions of this policy are the same. This endorsement is a part of your policy. It takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

NEW YORK STATE AMENDATORY ENDORSEMENT

It is agreed:

I. INSURING AGREEMENTS, B. is deleted in its entirety.

I. INSURING AGREEMENTS, D. is deleted in its entirety and replaced with the following:

The **Company** will pay the reasonable expenses incurred by an **Insured**, including loss of wages, if the Insured is required by the Company to attend arbitration proceedings, trial or a hearing in defense of a Claim, in the amount of \$250 per day for each Insured who attends such proceedings at the Company's request, subject to a maximum of \$5,000 per Claim. Payments made pursuant to this provision shall be in addition to the Limits of Liability shown in the Policy Declarations. The Deductible amount stated in the Policy Declarations shall not apply to the payments made by the Company pursuant to this provision.

II. FULL PRIOR ACTS COVERAGE PROVISION, the first paragraph is deleted in its entirety and replaced with the following:

Coverage shall apply to any **Claim** first made against the **Insured** arising out of a **Wrongful Act** and reported to the **Company** during the **Policy Period**, any subsequent renewal of the Policy or during any applicable extension period. Written notice of said **Claim** shall be reported to the **Company** during the **Policy Period** or, if applicable, during the Extension Period.

III. DEFINITIONS, B. is deleted in its entirety and replaced by the following:

B. "Claim" means any written notice received by any **Insured** that any person or entity intends to hold such **Insured** responsible for a **Wrongful Act**. A **Claim** shall be considered first made when an **Insured** or its legal representative or agent first receives notice of the **Claim**.

III. DEFINITIONS H. is deleted in its entirety and replaced by the following:

"Loss" means damages and settlements and pre-judgment interest awarded by a court against any **Insured**. **"Loss"** does not include punitive or exemplary damages, that portion of any multiplied damage award which exceeds the amount multiplied, criminal or civil fines or penalties imposed by law, taxes, matters deemed uninsurable under the law pursuant to which this Policy shall be construed, or the return or dispute over, in whole or in part, of any fees charged or collected by any **Insured** for **Professional Services**.

III. DEFINITIONS, O. is deleted in its entirety.

III. DEFINITIONS, is amended with the addition of the following:

“Termination of Coverage” means, whether made by the **Company** or the **Insured** at any time:

- (1) Cancellation or non-renewal of a **Policy**; or
- (2) Decrease in limits, reduction of coverage, increased deductible or self insured retention, new exclusion, or any other change in coverage less favorable to an **Insured**.

IV. EXCLUSIONS, A. is deleted in its entirety and replaced with the following:

- A.** Criminal, fraudulent, dishonest or discriminatory act or omission committed with knowledge of its wrongful nature or with intent to cause damage, or the gaining by the **Insured** of any personal profit, gain or advantage to which the **Insured** was not legally entitled.

IV. EXCLUSIONS, J. is deleted in its entirety and replaced with the following:

- J.** The actual, alleged or threatened discharge, dispersal, release or escape of any solid, liquid, gaseous or thermal irritant or contaminant including smoke, vapors, soot, fumes, acids, alkalis, chemicals, or waste into or upon land, the atmosphere or any water course or body of water, whether or not such actual, alleged or threatened discharge, dispersal, release or escape is sudden, accidental or gradual in nature, or any cost or expense arising out of any request, demand, or order that any **Insured** or others test for, monitor, clean up, or remove, contain, treat, detoxify or neutralize any pollutants. Waste includes materials to be recycled, reconditioned or reclaimed; or

V. DEFENSE AND SETTLEMENT is amended by the addition of the following:

- E.** If the **Company** concludes that, based on occurrences, offenses, **Claims** or suits which have been reported to the **Company** and to which this insurance may apply, the Limit of Liability is likely to be used up in the payment of judgments or settlements, the **Company** will notify the first **Named Insured**, in writing, to that effect.
- F.** When a limit of insurance described in **I. INSURING AGREEMENT, A.**, has actually been used up in the payment of judgment or settlements:
- (1) The **Company** will notify the first **Named Insured**, in writing, as soon as practicable, that:
 - (a) Such a limit has actually been used up; and
 - (b) The **Company’s** duty to defend suits seeking damages subject to that limit has also ended.
 - (2) The **Company** will initiate, and cooperate in, the transfer of control, to any appropriate **Insured**, of all **Claims** and suits seeking damages which are subject to that limit and which are reported to the **Company** before that limit is used up. The **Named Insured** must cooperate in the transfer of control of said **Claims** and suits.
 - (3) The **Company** agrees to take such steps, as the **Company** deems appropriate, to avoid a default in, or continue the defense of, such suits until such transfer is completed, provided the appropriate **Insured** is cooperating in completing such transfer.

- (4) The **Company** will take no action whatsoever with respect to any **Claim** or suit seeking damages that would have been subject to that limit, had it not been used up, if the **Claim** or suit is reported to the **Company** after that limit of insurance has been used up.
- (5) The **Named Insured**, and any other **Insured** involved in a suit seeking damages subject to that limit, must arrange for the defense of such suit within such time period as agreed to between the appropriate **Insured** and the **Company**. Absent any such agreement, arrangements for the defense of such suit must be made as soon as practicable.
- G. The **Named Insured** will reimburse us for expenses the **Company** incurs in taking those steps the **Company** deems appropriate in accordance with **F.(2)** above.
The duty of the **Named Insured** to reimburse the **Company** will begin on:
 - (1) The date on which the applicable limit of insurance is used up, if the **Company** sent notice in accordance with **E.** above; or
 - (2) The date on which the **Company** sent notice in accordance with **F.(1)** above, if the **Company** did not send notice in accordance with **E.** above.
- H. The exhaustion of any limit of insurance by the payments of judgment or settlements, and the resulting end of the **Company's** duty to defend, will not be affected by the **Company's** failure to comply with any of the provisions of this condition.
- I. The **Company** agrees if notice of entry of judgment for a **Claim**, first made against an **Insured** during the **Policy Period** or during the Extended Reporting Period, if applicable, for **Wrongful Acts** arising solely out of an **Insured's** duties, is served upon the **Insured** or **Insured's** attorney and upon the **Company** and such judgment remains unsatisfied at the expiration of thirty (30) days from the serving of notice, action may, except during a stay or limited stay of execution against the **Insured** on such judgment, be maintained against the **Company** for the amount of such judgment not exceeding the Limit of Liability shown on the Policy Declarations.

VI. LIMITS OF LIABILITY AND DEDUCTIBLE, **E.** and **H.** are deleted in their entirety and replaced with the following:

- E.** The Deductible amount stated in the Declarations shall apply to **Loss** and shall apply to each and every **Claim**. The **Company** shall only be liable to pay, subject to the Limits of Liability provisions stated in the Declarations, for **Loss** in excess of such Deductible, and such Deductible shall not be insured under this Policy.
- H.** The Limits of Insurance of this Policy apply separately to each consecutive annual period starting with the beginning of the **Policy Period** shown in the Declarations. If this Policy is issued for a period of more than twelve (12) months but less than twenty four (24) months or if the **Policy Period** is extended after issuance, the annual aggregate limit of the expiring Policy shall be increased in proportion to the Policy extension.

VI. LIMITS OF LIABILITY AND DEDUCTIBLE, **C.** is deleted in its entirety.

X. EXTENDED REPORTING PERIOD is deleted in its entirety and replaced with the following:

- A. Upon **Termination of Coverage** the **Company** will provide to the **Named Insured** a sixty (60) day Automatic Extended Reporting Period, or a ninety (90) day Automatic Extended Reporting Period if the **Named Insured** is a public entity, beginning effective the date of such termination or renewal provided the **Named Insured** has not purchased similar insurance from this or any other **Company** covering **Claims** first made during the Automatic Extended Reporting Period. In the event similar insurance is in force, coverage as provided by this endorsement shall be excess over any such insurance. The granting of such Automatic Extended Reporting Period shall not serve to increase the **Company's** Limit of Liability.
- B. The **Named Insured** shall have the right, upon payment of the required additional premium, less any return premium owed because of **Termination of Coverage**, plus any premium for the **Policy Period** which is owed and not yet paid, up to three (3) years following the effective date of **Termination of Coverage** (herein referred to as the Optional Extended Reporting Period) in which to give written notice to the **Company** of **Claims** first made against the **Insured** during said three years period for any **Wrongful Act** occurring prior to such **Termination of Coverage** and otherwise covered by this Policy.
- C. The right to an Optional Extended Reporting Period shall terminate, however, unless written notice of such election together with payment of the required additional premium due, less any return premium owed because of cancellation of this Policy, plus any premium for the **Policy Period** which is owed and not yet paid, is received by the **Company** not later than the later of:
- (1) Sixty (60) days from the effective date of **Termination of Coverage** or
 - (2) Thirty (30) days from the date of mailing or delivery of notice of **Termination of Coverage** stating the availability of, the premium for, and the importance of purchasing additional Extension Period coverage.
- D. The required additional premium shall be sixty-five percent (65%) of the full annual premium for a twelve (12) month extension, one hundred twenty-five percent (125%) of the full annual premium for a twenty-four (24) month extension, and one hundred ninety-five percent (195%) of the full annual premium for a thirty-six (36) month extension. The premium charged for the Extended Reporting Period coverage shall be based upon the rates for such coverage in effect on the date the Policy was issued or last renewed, and the **Company** shall not charge a different premium for such coverage due to any change in its rates, rating plans or rating rules subsequent to issuance or last renewal of the Policy.
- E. The total aggregate limit afforded for Claims first made during the Extended Reporting Period shall be the amount of coverage remaining in the expiring Policy annual aggregate. In no event shall the limits of liability afforded by any and all extensions exceed the limit of liability afforded by the Policy to which this extension applies.
- F. Not later than thirty (30) days after the effective date of **Termination of Coverage**, the **Company** shall mail or deliver to the first **Named Insured** a written advice of the Automatic Extended Reporting Period and the availability of it, and also of the amount of the required additional premium for the Extended Reporting Period and advise the first **Named Insured** of the importance of purchasing the Extended Reporting Period; however, if this Policy is cancelled by the **Company** due to non-payment of premium or

fraud on the part of any **Insured**, the **Company** shall not be required to provide such a premium quotation unless requested by the first **Named Insured**.

- G.** If coverage is terminated by the **Company** because of non-payment of premium or fraud by the insured, and at the effective date of such **Termination of Coverage** the **Company** has provided this insurance to the first **Named Insured** on a claims-made basis without interruption for less than one year, there shall be no right to elect and purchase an Optional Extended Reporting Period. If coverage has been in effect for more than one year the insured has the right to elect and purchase this Optional Extended Reporting Period. For purposes of this paragraph, Extended Reporting Period coverage shall not be considered as time when the **Company** was providing this coverage.
- H.** The Optional Extended Reporting Period shall not be cancelable, and the required additional premium for the Optional Extended Reporting Period shall be fully earned by the **Company** at the inception of the Optional Extended Reporting Period.
- I.** The **Company** shall provide Optional Extension Period coverage if this Policy is issued to a corporation, partnership or other entity upon **termination of coverage** to any person covered under this Policy, if:
 - (1)** Such insured entity has been placed in liquidation or bankruptcy or permanently ceases operations; or
 - (2)** The entity or its designated trustee does not purchase Optional Extension Period coverage; and
 - (3)** Such person requests the Optional Extension Period coverage within 120 days of the termination of coverage.

The **Company** shall have no obligation to provide any notice to any such person of the availability of the Optional Extended Reporting Period coverage.

- J.** During a claims-made relationship and any extended reporting period, a person employed or otherwise affiliated with the **Named Insured** and covered by this Policy during such affiliation, shall continue to be covered under this Policy and any extended reporting period after such affiliation has ceased for such person's covered acts or omissions during such affiliation.

XI. NOTICE/CLAIM REPORTING PROVISIONS is amended by the addition of the following:

- C.** Failure to give any notice required in A. above, shall not invalidate any **Claim** made by the **Named insured** if it shall be shown not to have been reasonably possible to give such notice within the prescribed time period and that notice was given as soon as was reasonably possible thereafter.
- D.** Failure to give any notice required in A. above shall not invalidate any **Claim** made by the **Named insured** unless the failure to provide timely notice has prejudiced the **Company**, except as provided in paragraph C. However, since this is a claims made Policy, the **Claim** shall be made during the **Policy Period**, any renewal thereof, or any extended reporting period.
- E.** With respect to all **Claims** if the **Company** disclaims liability or denies coverage based upon the failure to provide timely notice, then the injured person or other claimant may

maintain an action directly against the **Company**, in which the sole question is the **Company's** disclaimer or denial based on the failure to provide timely notice, unless within sixty (60) days following such disclaimer or denial, the **Parent Organization** or the **Company**:

- (1) Initiates an action to declare the rights of the parties under the insurance policy; and
- (2) Names the injured person or other claimant as a party to the action.

F. Upon the **Company's** receipt of a written request by an **Insured** who has filed a **Claim** or by another claimant, the **Company** shall, within sixty (60) days of receipt of the written request:

- (a) Confirm to the claimant in writing whether the **Insured** had a policy in effect with the **Company** on the date of the alleged **Wrongful Act**; and
- (b) Specify the liability insurance limits of the coverage provided under the Policy.

G. Notice given by or on behalf of the **Named Insured**, or written notice by or on behalf of the injured person or any other claimant, to any licensed agent of the **Named Insured** in the state of New York, with particulars sufficient to identify the **Insured**, shall be deemed notice to the **Company**.

XII. CANCELLATION OR NON-RENEWAL, is deleted in its entirety and replaced with the following:

A. CANCELLATION

(1) The **Named Insured** shown in the Declarations may cancel this entire Policy by mailing or delivering to the **Company** advance written notice of cancellation.

(2) Cancellation Of Policies In Effect

(a) 60 Days Or Less

The **Company** may cancel this Policy by mailing or delivering to the **Named Insured** written notice of cancellation at least:

- i. Thirty (30) days before the effective date of cancellation if the **Company** cancels for any reason not included in paragraph A.(2)(a)ii. below.
- ii. Fifteen (15) days before the effective date of cancellation if the **Company** cancels for any of the following reasons:
 - a) Non-payment of premium, provided however, that a notice of cancellation on this ground shall inform the **Named Insured** of the amount due;
 - b) Conviction of a crime arising out of acts increasing the hazard insured against;
 - c) Discovery of fraud or material misrepresentation in the obtaining of the Policy or in the presentation of a **Claim**;
 - d) After issuance of the Policy or after the last renewal date, discovery of an act or omission, or a violation of any Policy condition, that substantially and materially increases the hazard insured against, and that occurred subsequent to inception of the current **Policy Period**;
 - e) Material physical change in the property insured, occurring after issuance or last annual renewal anniversary date of the Policy, that results in the property becoming uninsurable in accordance with the **Company's** objective, uniformly applied underwriting standards in effect at the time

the Policy was issued or last renewed; or material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of the policy, that causes the risk of **Loss** to be substantially and materially increased beyond that contemplated at the time the Policy was issued or last renewed;

- f) Required pursuant to a determination by the Superintendent that continuation of the **Company's** present premium volume would jeopardize the **Company's** solvency or be hazardous to the interest of the **Company's** policyholders, the **Company's** creditors or the public;
- g) A determination by the Superintendent that the continuation of the Policy would violate, or would place the **Company** in violation of, any provision of the Insurance Code; or
- h) Where the **Company** has reason to believe, in good faith and with sufficient cause, that there is a probable risk of danger that the **Named Insured** will destroy, or permit to be destroyed, the insured property for the purpose of collecting the insurance proceeds. If the **Company** cancels for this reason, the **Named Insured** may make a written request to the Insurance Department, within ten (10) days of receipt of this notice, to review the **Company's** cancellation decision. Also, the **Company** will simultaneously send a copy of this cancellation notice to the Insurance Department.
- i) Revocation or suspension of the insured's license to practice their profession.

(b) For More Than 60 Days

If this Policy has been in effect for more than sixty (60) days, or if this Policy is a renewal or continuation of a Policy the **Company** issued, the **Company** may cancel only for any of the reasons listed in paragraph **A.(2)(a)ii.** above, provided:

- i. The **Company** mails the **Named Insured** written notice at least fifteen (15) days before the effective date of cancellation; and
- ii. If the **Company** cancels for non-payment of premium, the **Company's** notice of cancellation informs the **Named Insured** of the amount due.

(3) The **Company** will mail or deliver the **Company's** notice, including the reason for cancellation, to the **Named Insured** at the address shown in the Policy and to the authorized agent or broker.

(4) If this Policy is cancelled, the **Company** will send the **Named Insured** any premium refund due. If the **Company** cancels, the refund will be pro rata. If the **Named Insured** cancels, the refund may be less than pro rata.

However, when the premium is advanced under a premium finance agreement, the cancellation refund will be pro rata. Under such financed Policies, the **Company** will be entitled to retain a minimum earned premium of ten percent (10%) of the total Policy premium or \$60, whichever is greater. The cancellation will be effective even if the **Company** has not made or offered a refund.

B. If one of the reasons for cancellation in paragraph **A.(2)(a)ii.** exists, the **Company** may cancel this entire Policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this Policy.

C. NON-RENEWAL

(1) If the **Company** decides not to renew this Policy the **Company** will send notice as provided in Paragraph C.(3) below.

(2) Conditional Renewal

If the **Company** conditionally renews this Policy subject to a:

- (a) Change of limits;
- (b) Change in type of coverage;
- (c) Reduction of coverage;
- (d) Increased deductible;
- (e) Addition of exclusion; or
- (f) Increased premiums in excess of ten percent (10%), exclusive of any premium increase due to and commensurate with insured value added or increased exposure units; or as a result of experience rating, loss rating, retrospective rating or audit;

the **Company** will send notice as provided in paragraph C.(3) below.

(3) Notices Of Non-renewal And Conditional Renewal

(a) If the **Company** decides not to renew this Policy or to conditionally renew this Policy as provided in paragraphs C.(1) and C.(2) above, the **Company** will mail or deliver written notice to the **Named Insured** shown in the Declarations at least sixty (60) but not more than one hundred twenty (120) days before:

- i. The expiration date; or
- ii. The anniversary date if this is a continuous Policy.

(b) Notice will be mailed or delivered to the **Named Insured** at the address shown in the Policy and to the authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.

(c) Notice will include the specific reason(s) for non-renewal or conditional renewal, including the amount of any premium increase for conditional renewal and description of any other changes.

(d) If the **Company** violates any of the provisions of paragraphs C.(3)(a), (b) or (c) above, by sending the **Named Insured** an incomplete or late conditional renewal notice or a late non-renewal notice:

- i. Coverage will remain in effect at the same terms and conditions of this Policy at the lower of the current rates or the prior period's rates until sixty (60) days after such notice is mailed or delivered, unless the **Named Insured**, during this sixty (60) day period, has replaced the coverage or elects to cancel.
- ii. On or after the expiration date of this Policy, coverage will remain in effect at the same terms and conditions of this Policy for another **Policy Period**, at the lower of the current rates or the prior period's rates, unless the **Named Insured**, during this additional **Policy Period**, has replaced the coverage or elects to cancel.

(e) If the **Named Insured** elects to renew on the basis of a late conditional renewal notice, the terms, conditions and rates set forth in such notice shall apply:

- i. Upon expiration of the sixty (60) day period; or
- ii. Notwithstanding the provisions in Paragraphs (d)(i) and (d)(ii), as of the

renewal date of the Policy if the **Company** send the **Named Insured** the conditional renewal notice at least thirty (30) days prior to the expiration or anniversary date of the Policy.

- f. The **Company** will not send the **Named Insured** notice of non-renewal or conditional renewal if the **Named Insured**, the **Named Insured's** authorized agent or broker or another insurer of the **Named Insured** mails or delivers notice that the Policy has been replaced or is no longer desired.

XV. CHANGES, is deleted in its entirety and replaced with following:

This Policy contains all agreements between the **Insured** and the **Company** concerning the insurance afforded. The **Named Insured** shown in the Declarations is authorized to make changes in the terms of this Policy, but only with the consent of the **Company**. This Policy's terms can be amended or waived only by endorsement issued by the **Company** and made a part of this Policy. Knowledge of an agent to the **Company** shall be acknowledged to the **Company** and any fact which breaches a condition of the Policy, and is known to the **Company's** agent, shall not void the Policy or defeat a recovery thereon in the event of **Loss**.

XVIII. OTHER INSURANCE is deleted in its entirety and replaced with the following:

This Policy shall be excess of and not contribute with other valid and collectible insurance, including but not limited to any insurance under which there is a duty to defend, unless such other insurance is specifically written to be in excess of this Policy.

XXII. ACTION AGAINST COMPANY, A. is deleted in its entirety and replaced with the following:

A. No person or organization has a right under this Policy:

- (1) To join the **Company** as a party or otherwise bring the **Company** into a suit asking for damages from an **Insured**; or
- (2) To sue the **Company** on this Policy unless all of its terms have been fully complied with.

A person or organization may sue the **Company** to recover on an agreed settlement or on a final judgment against an **Insured**; but the **Company** will not be liable for damages that are not payable under the terms of this Policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by the **Company**, the **Insured** and the claimant or the claimant's legal representative. In case judgment against an **Insured** in an action brought to recover damages for injury shall remain unsatisfied at the expiration of thirty (30) days from the serving of notice of entry of judgment upon the attorney for the **Named Insured** or the **Named Insured**, and upon the **Company**, then an action may, except during a stay or limited stay of execution against the **Named Insured** or **Insured** on such judgment, be maintained against the **Company** under the terms of the Policy for the amount of such judgment not exceeding the amount of the applicable limit of coverage under such Policy.

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Named Insured's** Policy and takes effect on the effective date of the **Named Insured's** Policy unless another effective date is shown.



business resource center



As a policyholder through USLI, you have access to many free and discounted services that will assist you in operating and growing your business through the Business Resource Center (BRC). Consider the following services and associated cost savings when deciding where to place your insurance!

Cybersecurity

- Complimentary access to eRiskHub®, a data breach prevention and response resource that will help you understand your exposure to a data breach and the importance of a response plan
- Best practice checklists for securing personal and payment card information, plus tips on protecting against cyberattacks

Background Checks and Screenings

- Discounted background checks, including multi-court criminal database searches, county criminal searches and more (first background check is free)
- Best practices for performing a background check
- Discounted tenant and drug screenings and motor vehicle reports (MVRs)

Disaster Preparation and Recovery

- Guidance on preparing for natural disasters and severe weather
- Business planning and recovery toolkit
- Sample incident reporting form and disaster loan assistance resource

Human Resources

- Free PeopleSystems' human resources consultation helpline to be used for personnel issues, including harassment and discrimination, the Family and Medical Leave Act, disability, wage and hours regulations and more
- Online library with information, forms and articles pertaining to human resources
- Discounted HR and payroll management system by PrimePoint
- Discounted employee workplace assessment by Talogy, previously PSI Caliper
- Resources for recruiting, interviewing and terminating employees

Marketing

- Resources marketing via email and social media, capturing leads and building surveys
- Free and discounted stock imagery sites and photo and video editing programs
- Discount stationery, signage, promotional items and gifts

Property Safety

- Free workplace safety and occupational health consultation
- Tips for building maintenance, fire prevention and water safety

Industry-specific Resources For:

- Health, wellness and sports
- Hospitality, food and beverage
- Nonprofits and social services
- Residential and rental properties
- Retail and professional services
- Youth services and child care
- ... and more!



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- CPR, first aid and concussion
- Sexual harassment
- Leadership and professional development



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